GENERAL CUSTOMER INFORMATION ON TRAVEL ACCIDENT INSURANCE

DEFINITIONS

Terms used in this document have the same meaning as in the General Terms and Conditions of Insurance and the Insurance Product Information Document unless otherwise defined in this document.

Note

No insurance contract is concluded between you and the insurer. However, by joining the group insurance contract existing between Sixt Insurance Intermediary GmbH and TRIAS Versicherung AG, the following persons receive insurance cover as insured person(s) in accordance with the following conditions:

- Any person who drives the rental vehicle with the permission of the lessor or lessee and is in possession of a valid driver's license authorizing him/her to drive the rental vehicle
- Any person riding in the rental vehicle who is transported for a fee or free of charge.

INFORMATION ON THE INSURER

1. Identity and summonable address of the insurer

TRIAS Versicherung AG
Maximiliansplatz 5
80333 Munich

represented by the Management Board:
Wolfgang Reichel (Chairman of the Executive Board),
Dr. Klaus Math, Hermann Schrögenauer, Iris Bauer

Chairman of the Supervisory Board:
Dr. Peter Dvorak

Registered office: Munich, AG Munich HRB 76784
Legal form: Public limited company

Sixt Insurance Intermediary GmbH is entitled to receive notifications, declarations of intent and payments from the insured persons and is obliged to forward these to the insurer without delay. Receipt by Sixt Insurance Intermediary GmbH is legally equivalent to receipt by the insurer.

Note: Damage reports must be submitted exclusively via the web portal:
https://www.trias-schadensmeldung.de/sixt-unfallversicherung/. If you have any questions, please contact TRIAS customer service: **+49 (0) 89 55 167 1149** (the usual telephone charges of your telecommunications provider apply).

2. Main business activity of the insurer

The main business activity of the insurer is the operation of general accident insurance, the operation of general comprehensive land vehicle insurance, the operation of daily allowance insurance, the operation of motor vehicle liability insurance (limited to small electric vehicles and mopeds), the operation of insurance against loss of rent and income, the operation in direct and indirect business. The company is also authorized to broker insurance of all kinds and to conduct other business directly related to the insurance business.

INFORMATION ON THE BENEFITS OFFERED

3. Insurance conditions, essential features of the insurance benefit

The main features of the insurance, such as the type, scope, due date and fulfillment of the insurance benefits can be found in the following General Terms and Conditions of Insurance for Travel Accident Insurance and in the Insurance Product Information Document.

4. Total price of the insurance

The total price of the insurance, including all taxes and other price components, can be found in your vehicle rental contract.

5. Payment and fulfillment

Details regarding payment and fulfillment, in particular the method of payment of premiums, can be found in your General Terms and Conditions of Insurance for Travel Accident Insurance under the heading “What do you have to consider when paying premiums?”

INFORMATION ON THE CONTRACT

6. Joining the Travel Accident Group Insurance

You join the group Travel Accident Insurance by selecting the Travel Accident Cover in connection with the conclusion of your vehicle rental contract. The declaration can be made, for example, in connection with the vehicle reservation via a website or app or when picking up the vehicle. The declaration of membership is conditional on the system creating the vehicle rental contract when you collect the vehicle.

7. Start and end of the insurance cover

The insurance cover begins with the takeover of the rented vehicle. However, there is no insurance cover before the pick-up date specified in the vehicle rental agreement. The insurance cover is valid for the duration of the respective rental contract. The insurance cover ends automatically when the rented vehicle is returned.

8. Withdrawal of the Membership Declaration

You can withdraw your membership declaration for the Sixt Personal Accident Insurance Group Policy within 14 days without providing any reason, in text form (e.g., letter, fax,

email). For more information, please refer to the notice regarding the withdrawal option.

9. Term of the insurance cover

The term of the insurance cover corresponds to the duration of the respective tenancy.

10. Termination of the insurance cover

The insurance cover ends automatically when the rented vehicle is returned. Premature termination is not possible.

11. Knowledge and conduct of the insured person

Insofar as the knowledge and conduct of the policyholder (Sixt Insurance Intermediary GmbH) are of legal significance in the following General Terms and Conditions of Insurance for Travel Accident Cover, the knowledge and conduct of the insured persons shall also be taken into account for the existence of claims arising from the insurance contract.

12. Applicable law and competent court

The insurance contract shall be governed by the law of the Federal Republic of Germany. Information on the place of jurisdiction can be found in the General Insurance Conditions for Travel Accident Insurance under "Which court has jurisdiction?".

13. Language of the contract and correspondence

The contractual terms and conditions and the necessary information as well as communication during the term of this contract shall be in German.

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INFORMATION ON THE LEGAL PROCESS

14. out-of-court complaint and redress procedures

As a member of the Versicherungsombudsmann e.V. association, we have undertaken to participate in a dispute resolution procedure before a consumer arbitration board. This gives you the opportunity to make use of the independent and neutral ombudsman. You can turn to him if you disagree with a decision. The procedure is free of charge for the complainant.

Insurance Ombudsman e. V.
P.O. Box 080632
10006 Berlin
Phone: +49 (0)800 3696000
Fax: +49 (0)800 3699000
Mail: beschwerde@versicherungsombudsmann.de
www.versicherungsombudsmann.de

If the contract was concluded electronically (e.g. via a website or by email), the complaint can also be submitted via the online dispute resolution platform http://ec.europa.eu/consumers/odr/. The complaint will be forwarded from there to the insurance ombudsman. Questions about this can also be sent to us by email: info@trias.de.
If recourse is made to the ombudsman procedure, this does not affect the possibility of taking legal action.

15. Responsible supervisory authority

If there are any problems with your insurance that you cannot resolve with us, you have the option of contacting the

Federal Financial Supervisory Authority
Graurheindorfer Str. 108
53117 Bonn
Tel.: +49 (0)2 28 / 41 08 - 0
Fax: +49 (0)2 28 / 41 08 - 15 50
E-mail: poststelle@bafin.de

to contact us.

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INFORMATION ON THE PROCESSING OF YOUR PERSONAL DATA BY THE INSURER

16. Controller and purposes of data processing

The insurer is solely responsible for data processing within the scope of the insurance contract. In this context, it processes the personal data of the insured persons for the purpose of:

- **Execution of the insurance contract**
  (e.g. invoicing, claims handling); the processing is based on legitimate interest (Art. 6 para. 1 f) GDPR) and, in the case of the processing of special categories of personal data (e.g. health data), on the basis of the consent of the data subject (Art. 9 para. 2 a) in conjunction with Art. 7 GDPR)
- **Compilation of insurance-specific statistics,** e.g. for the development of new tariffs or to fulfill regulatory requirements; the processing is based on legitimate interest (Art. 6 para. 1 f) GDPR) and, in the case of processing special categories of personal data (e.g. health data), on the basis of the consent of the data subject (Art. 9 para. 2 j) GDPR in conjunction with Section 27 BDSG)
- **Fulfillment of legal obligations** such as regulatory requirements, commercial and tax retention obligations or our obligation to provide advice; in this case, the legal basis for the processing is the respective

legal regulations in conjunction with Art. 6 para. 1 c) GDPR.

You can contact the insurer's data protection officer by post at the above address with the addition - Data Protection Officer - or by email at: datenschutz@trias.de

17. rights of data subjects

The insured persons can request information about the data stored about them at the above-mentioned address of the insurer. In addition, under certain conditions, you can request the correction or deletion of your data. Furthermore, the insured persons may have the right to restrict the processing of their data and the right to receive the data they have provided in a structured, commonly used and machine-readable format.

18. right to object

Insured persons have the right to object to the processing of their personal data for direct marketing purposes. If we process the data to protect legitimate interests, the insured persons may object to this processing if there are reasons arising from their particular situation that speak against the data processing.

19. Right to lodge a complaint

The insured persons have the option of lodging a complaint with the data protection officer named above or with a data protection supervisory authority. The data protection supervisory authority responsible for us is

Bavarian State Office for Data Protection Supervision
Promenade 27
91522 Ansbach

Detailed information on the processing of personal data by the insurer and the rights of the persons concerned can be found at https://www.trias.de/datenschutz.html.

Travel Accident Insurance

Insurance Product Information Document

Company: TRIAS Versicherung AG
Germany

TRIAS Ein Unternehmen der LV 1871

This information sheet is for your information only and gives you a brief overview of the main contents of Travel Accident Insurance. You will find full information and the scope of insurance agreed for your contract in the General Insurance Conditions for Passenger Accident Insurance. To ensure that you are fully informed, please read through all the documents.

What is this type of insurance?

This is Travel Accident Insurance (travel insurance for passengers).

What is insured?

- Travel Accident Insurance provides financial protection for the driver of the vehicle and all authorized passengers, regardless of who is at fault.

  The insurance covers personal injuries that occur as a result of accidents during travel while driving, using, loading and unloading, manouvering the rented vehicle, and getting in and out.

  An accident is defined as an unexpected event that originates from an external source and involuntarily leads to harm to health.

Cash benefits

- One-off disability benefit in the event of permanent impairment (e.g. restricted mobility)
- One-off death benefit in the event of death.
- Reimbursement of medical expenses incurred due to the accident

How high is the sum insured?

For one occupant at the time of the accident:

- Disability: €50,000
- Death: €25,000
- Medical expenses: up to €2,000

For more than one occupant at the time of the accident:

- Disability: €75,000
- Death: €37,500
- Medical expenses: up to €3,000

These amounts are divided among the number of vehicle occupants involved in the accident.

What is not insured?

- Accidents suffered by the insured person due to illness, such as a stroke.
- Damage to property, such as glasses.
- Accidents resulting from criminal or intentional acts
- Accidents occurring during participation in a car race or associated training drives

Are there any restrictions on cover?

Not all conceivable cases are insured.

Excluded from insurance cover are, for example:

- Accidents caused by alcohol or drug consumption
- If the consequences of an accident and illnesses coincide, benefits may be reduced.
- Accidents during the deliberate commission of a criminal offense
- Damage to intervertebral discs
- Accidents that are not related to traverl (e.g. accidents that occur in the course of commercial activities)

Impairments, illnesses or infirmities that already existed before the accident reduce the benefits - depending on their influence.

Where am i covered?

- We offer insurance cover for accidents involving the insured persons that are directly related to the use of the rented vehicle.

What are my obligations?

After an accident, you must seek medical attention immediately and notify us of the incident.

The information should be sent to us via the following web portal:

https://trias.de/sixt-schaden

If you have any questions, please contact TRIAS customer service at:
+49 (0) 89 55 167 344 (standard telephone charges apply based on your telecommunications provider).

When and how do I pay?

The premium for Travel Accident Insurance is charged by the respective rental company together with the vehicle rental.

When does the cover start and end?

The insurance coverage begins when you take possession of the rented vehicle. However, coverage does not apply before the pick-up date specified in the vehicle rental contract. The insurance remains valid for the duration of the rental agreement.

How do I cancel the contract?

The insurance coverage will end automatically when the rented vehicle is returned. Early termination is not permitted.

General Insurance Terms and Conditions for Travel Accident Insurance

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Scope of benefits

1 WHAT IS INSURED? (SUBJECT MATTER OF THE INSURANCE)

1.1 What is covered by the insurance?
We provide insurance coverage for accidents involving the insured persons that are directly related to travel and the use of the rented vehicle or any trailer attached to it. This includes, but is not limited to, activities such as driving, entering and exiting the vehicle, and loading or unloading.

1.2 Where and when does the insurance cover apply?
The insurance coverage begins at the time the rented vehicle is taken over by the insured. However, there is no coverage prior to the pick-up date specified in the vehicle rental agreement. The insurance coverage remains in effect for the duration of the rental period as specified in the rental agreement. The coverage automatically ceases when the rented vehicle is returned.

1.3 What is defined as an accident?

1.3.1 Definition of an accident
An accident is defined as an

- involuntary injury to the insured person's health or physical condition
- resulting from a sudden, external, the body affecting event.

Involuntariness is presumed until proven otherwise.

Injury to the insured person's health sustained during lawful defense or efforts to protect human life, animals, or property is considered involuntary and is therefore covered under this insurance.

1.3.2 Fluid/Food/Oxygen Deprivation
Furthermore, the following are covered by this insurance if they occur as a result of an accident:

- Fluid deprivation, and/or
- Food deprivation, and/or
- Oxygen deprivation.

This coverage applies only if these conditions result directly from an accident.

1.3.3 Increased Exertion
Strains and dislocations
An accident is also deemed to have occurred if the insured person experiences any of the following as a result of increased exertion of force:

- Dislocation of a joint in the limbs or spine.
  Example: The insured person supports a heavy object while loading the rented vehicle and dislocates the elbow joint in the process.

- Strain or tears of muscles, tendons, ligaments, or capsules.
  Example: The insured person strains the muscles in his forearm when unloading a heavy object from the vehicle.

It is important to note that meniscus and intervertebral discs are not classified as muscles, tendons, ligaments, or capsules. As such, damage to the meniscus or intervertebral disc damage is not covered under this provision.

Increased exertion refers to movements that require the use of muscles beyond normal activities of everyday life, work, or sport. The insured person's individual physical condition is a determining factor in this assessment.
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1.3.4 Infections
The following infectious diseases are covered by the insurance:

- Rabies and tetanus, as well as
- Infections in which pathogens enter the body through accidental injuries.

This does not apply to infections caused by insect bites or stings or other minor skin or mucous membrane injuries through which pathogens enter the body immediately or later.

2 WHO IS INSURED AND WHAT ARE THE SUMS INSURED?

2.1 Flat-rate System
The following persons are insured:

- Any individual who drives the rental vehicle with the permission of the lessor or lessee and possesses a valid driving license that authorizes them to operate the rental vehicle.

- Any individual riding in the vehicle who is transported with the knowledge and consent of the lessor or lessee, whether for payment or free of charge.

If two or more occupants are present at the time of the accident, the sums insured are increased by 50 percent and divided equally among the number of occupants, regardless of whether all occupants are injured.

2.2 Sums Insured
The following sums insured apply to the benefits outlined below:
For one occupant at the time of the accident:

- Disability: €50,000.00
- Death: €25,000.00
- Medical expenses: Up to €2,000.00

For more than one occupant at the time of the accident:

- Disability: €75,000.00
- Death: €37,500.00
- Medical expenses: Up to €3,000.00

These sums are divided by the number of occupants in the vehicle.

Example:
In the case of three occupants at the time of the accident, the coverage for each occupant is as follows:

- Disability: €25,000.00
- Death: €12,500.00
- Medical expenses: Up to €1,000.00

3 WHAT BENEFITS ARE AGREED?

3.1 Disability benefit

3.1.1 Prerequisite for the benefit

3.1.1.1 Disability

An entitlement to benefits exists if the insured person suffers a disability as a result of an accident. Disability is defined as a permanent impairment of physical or mental capacity due to the accident.
An impairment is considered permanent if it is expected to last longer than three years, and no change in this condition is anticipated.

Example:
An impairment is not permanent if the insured person suffers a broken bone that heals without lasting consequences within one year.

3.1.1.2 Period of Occurrence and Medical Assessment
The disability must occur within one year of the accident (onset period) and must be confirmed in writing by a doctor within 15 months of the accident (medical confirmation).

If either of these conditions is not met, there is no entitlement to disability benefits.

3.1.1.3 Claiming disability
The insured person must claim disability from us within 15 months of the accident. To claim, the insured person must inform us that they expect to be disabled. If this deadline is missed, the insured person will not be entitled to disability benefits.

Failure to meet the deadline may only be excused in exceptional cases.

Example:
If the insured person suffered severe head injuries in the accident and was unable to contact us, the deadline may be waived under exceptional circumstances.

3.1.1.4 No Disability Benefit in the Event of Accidental Death in the First Year
If the insured person dies as a result of the accident within one year, there is no entitlement to disability benefits.

In this case, a co-insured death benefit will be paid (see subsection 3.2).

3.1.2 Type and amount of Benefit

3.1.2.1 Calculation of the Disability Benefit
We will pay the disability benefit as a single capital amount. The amount of the benefit is based on the agreed sum insured and the degree of disability caused by the accident.

Example:
With an applicable sum insured of €50,000.00 and an accident-related degree of disability of 20%, we will pay €10,000.00.

3.1.2.2 Determination of the Degree of Disability
The degree of disability is determined:

- According to the Percentage-based Compensation (subsection 3.1.2.2.1) for the body parts or sensory organs listed there,
- Otherwise, based on the extent to which the normal physical or mental capacity is permanently impaired (subsection 3.1.2.2.2). The decisive factor is the accident-related state of health, which must be established no later than by the end of the third year after the accident.

This applies to both the initial and subsequent disability assessments (Section 8.3).

3.1.2.2.1 Percentage-based Compensation
In the event of loss or complete functional incapacity of the body parts or sensory organs listed below, only the disability degrees specified here will apply:

One arm	70 %
One arm up to above the elbow joint	65 %
One arm below the elbow joint	60 %
Hand	55 %
Thumb	20 %
Index finger	10 %
Other fingers	5 %
Leg above the middle of the thigh	70 %
Leg up to the middle of the thigh	60 %
Leg to below the knee	50 %
Leg to the middle of the lower leg	45 %
Foot	40 %
Big toe	5 %
Other toe	2 %
Eye	50 %
Hearing in one ear	30 %
Sense of smell	10 %
Sense of taste	5 %

The insurance does not cover the loss of voice or speech resulting from accident-related psychological trauma (psychogenic reaction) as described in Section 4.3.1. Loss of voice is only covered if caused by an accident-related organic injury.

For partial loss or partial functional impairment, the corresponding portion of the listed disability percentage applies.

Example:
If one arm is completely unable to function, the degree of disability is 70%. If its function is impaired by one-tenth, the degree of disability is 7% (one-tenth of 70%).

3.1.2.2.2 Assessment Outside the Percentage-based Compensation
For other body parts or sensory organs not covered by the Percentage-based Compensation, the degree of disability is determined by the extent to which the normal physical or mental capacity is permanently impaired. The benchmark is an average person of the same age and gender.

This assessment is based exclusively on medical aspects.

3.1.2.2.3 Reduction Due to Pre-existing Disability
If the affected body parts or sensory organs, or their function, were already permanently impaired before the accident, we will reduce the degree of disability by the pre-existing disability. The reduction is calculated in the same manner as the accident-related disability under subsections 3.1.2.2.1 and 3.1.2.2.2.

Example:
If an arm is completely unable to function (disability of 70%) and the function of the arm was previously impaired by one-tenth (pre-disability of 7%), we will deduct the 7% pre-disability. The accident-related degree of disability would then be 63%.

3.1.2.2.3.1 No Crediting of Prior Disability for Eyesight and Hearing

If eyesight or hearing was permanently impaired before the accident, the prior disability will not be considered for a reduction if the impairment was compensated by optical or acoustic aids (e.g., glasses, hearing aids) and the eyesight or hearing is now completely lost due to the accident.

3.1.2.2.4 Degree of Disability in the Event of Impairment of Several Parts of the Body or Sensory Organs
If multiple parts of the body or sensory organs are impaired by the accident, the degrees of disability determined for each part will be added together. However, the total disability will not exceed 100%.

Example:
If one arm is completely unable to function (70%) and one leg is half impaired (35%), the total degree of disability would be 105%. However, the disability will be limited to 100%.

3.1.2.2.5 Disability Benefit in the Event of the Death of the Insured Person

- From a cause unrelated to the accident within the first year, or
- Regardless of the cause, after more than one year following the accident,

And an entitlement to disability benefits had previously arisen, we will pay benefits according to the degree of disability that would have been expected based on the most recent medical findings.

3.2 Death Benefit

3.2.1 Prerequisite for the Benefit
The insured person must have died as a result of the accident within one year, or must have been declared dead under the German Act on Missing Persons (Verschollenheitsgesetz - VerschG). We draw attention to the special obligations in accordance with Clause 6.5.

3.2.2 Amount of the Benefit
The contractually agreed death benefit will be paid.

3.3 Medical Expenses

3.3.1 Precondition and Amount of benefit
We will reimburse necessary medical treatment costs incurred within the first year after the accident, up to the agreed sum insured for each insured event. This includes expenses for artificial limbs and other purchases required as prescribed by a doctor.
Doctor's fees will only be reimbursed if they are in line with the official fee schedule or a comparable scale. If the fees exceed the regular standard (e.g., excessively high fees not justified by medical necessity), the excess amount will not be reimbursed. Reimbursement is based on what is considered reasonable and customary for the treatment provided under normal circumstances.

3.3.2 Excluded Benefits
The following costs are excluded from reimbursement:

- Costs of food and beverages,
- Bathing and recreational trips,
- Nursing care (unless ordered by a doctor to involve professional nursing staff).

3.3.3 Relationship to Other Cost Reimbursements
If individual medical expenses insurance or individual accident medical expenses insurance is taken out simultaneously, reimbursement under the Travel Accident Cover will only be provided to the extent that the health insurer has paid its benefits in full and these benefits do not cover the incurred costs. If the health insurer denies payment or disputes its obligation, the policyholder may contact the accident insurer directly.

4 IN WHICH CASES IS INSURANCE EXCLUDED?

4.1 Excluded Accidents

4.1.1 Impaired Consciousness
Accidents suffered by the insured person due to impaired consciousness, heart attacks, strokes, epileptic fits, or other seizures affecting the insured person's entire body are excluded from insurance cover. Impaired consciousness is defined as a state where the insured person's ability to perceive and respond to their surroundings is sufficiently diminished, making them unable to manage the specific risk situation. Causes of impaired consciousness may include, but are not limited to:

- Health impairments,
- Drug consumption,
- Medication usage.

Examples:
The insured person causes an accident due to being under the influence of alcohol.

Exception:
If the impaired consciousness or seizure is caused by an accident that falls within the terms and conditions of this insurance contract, coverage will apply.
For instance, if the insured person experiences brain damage in an accident and later suffers an epileptic seizure related to that injury, the insurance will cover the consequences of the new accident.

Important Note:

- A state of fatigue or sleepiness is not considered impaired consciousness unless the insured person falls asleep due to fatigue.
- Daytime sleepiness or microsleep is excluded from insurance coverage if the insured person has sleep apnea syndrome (SAS).

4.1.1.1 Impaired Consciousness Due to Medication
For individuals under the age of 67, accidents caused by impaired consciousness due to medication prescribed by a doctor are covered, provided that the medication was taken in accordance with the prescribed instructions.

4.1.1.2 Impaired Consciousness Due to Heart Attack or Stroke
For persons who have not yet reached the age of 67, accidents resulting from impaired consciousness caused by a stroke or heart attack are also insured. The insurance cover does not include damage to health that is solely the consequence of a stroke or heart attack and not the result of the accident.

4.1.1.3 Impaired Consciousness Due to Cardiovascular Disorders
The insurance covers accidents caused by impaired consciousness if they result from cardiovascular disorders.

4.1.1.4 Startle and Fatigue

Fright or fatigue do not qualify as impaired consciousness under this insurance.

4.1.2 Non-travel-related accidents
Accidents that are not related to a journey (e.g., accidents occurring during commercial activities) are not insured.

4.2 Criminal Offense
Accidents occurring as a result of the insured person intentionally committing or attempting to commit a criminal offense are excluded from coverage.

4.3 Excluded Damage to Health

4.3.1 Mental and Nervous Disorders
There is no coverage for the consequences of mental or nervous disorders that occur immediately after the accident.

4.3.2 Therapeutic Measures or Interventions
Damage to health resulting from medical treatment or surgical interventions performed on the insured person's body is excluded from coverage.

4.3.3 Infections
Infections are excluded from coverage, unless they fall under the specific conditions mentioned in Clause 1.3.4. However, infections caused by medical treatment or surgical interventions due to an accident covered by this policy will be covered.

4.3.4 Poisoning
Poisoning resulting from the ingestion of solid or liquid substances through the esophagus is excluded from coverage.

4.3.5 Radiation
Accidents caused by radiation are excluded from coverage.

4.3.6 Damage to Intervertebral Discs, Bleeding from Internal Organs, and Cerebral Hemorrhages
Damage to intervertebral discs, bleeding from internal organs, and cerebral hemorrhages are excluded from coverage. However, coverage will apply if intervertebral disc damage occurs along with injuries to other body parts as a result of an accident within the meaning of this insurance.

4.3.7 Abdominal Hernias
Abdominal and abdominal hernias are excluded from coverage. However, coverage will apply if the hernia results from a violent, external, and direct impact to the abdominal area, as documented by medical findings.

5 WHAT HAPPENS IF THE CONSEQUENCES OF AN ACCIDENT COINCIDE WITH ILLNESS OR INFIRMITY?

5.1 Illnesses and Infirmities
As an accident insurer, we only provide benefits for consequences that are directly caused by accidents. This includes:

- Damage to health, and
- The consequences of damage to health,
- Resulting from the accident event.

However, we do not cover illnesses or other physical or mental ailments that are unrelated to the accident.

Examples of illnesses: diabetes, joint diseases, osteoporosis.

Examples of infirmities: hearing loss, amputations, or congenital limitations of movement.

5.2 Impact of Pre-existing Conditions
If the consequences of an accident are combined with pre-existing illnesses or infirmities, the following applies:
If illnesses or infirmities contribute to at least 25% of the overall damage to health (referred to as the contributory share), we will adjust the benefits as follows:

- For disability benefits: The percentage of the degree of disability is adjusted according to the contributory share from illness or infirmity.
- For all other types of benefits: The benefit itself is reduced based on the contributory share, unless otherwise specified.

Example:
A leg injury results in a degree of disability of 10%. However, diabetes contributed 50% to the injury's outcome. Therefore, the accident-related disability caused by the accident is 5%, taking the contributory share of the illness into account.

We require proof of the contribution of illnesses or infirmities to the overall damage to health.

The benefit case

6 WHAT MUST BE OBSERVED AFTER AN ACCIDENT (OBLIGATIONS)?

To ensure that we can provide our benefits, we rely on your cooperation and that of the insured person.

6.1 Consultation of a doctor
After an accident that could lead to a claim, the insured person must:

- Consult a doctor immediately,
- Follow the doctor's instructions, and
- Inform us as soon as possible.

6.2 Notification of Accident
You must complete the accident report truthfully. Any additional relevant information we request must be provided in the same truthful manner.

6.3 Medical Examination
If we commission doctors, the insured person must undergo an examination by these doctors. We will cover all necessary costs, including any loss of earnings resulting from the examination.

6.4 Provision of Information by Attending Physicians
Doctors who have treated or examined the insured person (including for reasons unrelated to the accident) must be authorized to provide us with all necessary information. This includes any information from other insurers, insurance carriers, or authorities.

6.5 Notification of Accident in the Event of Death
If the accident results in death, the following applies:

- The death must be reported to us within 48 hours, even if we have already been notified of the accident,
- We must be given the right to request an autopsy, which may be carried out by a doctor appointed by us, if necessary.

7 WHAT ARE THE CONSEQUENCES OF NON-COMPLIANCE WITH OBLIGATIONS?

If you intentionally breach an obligation under Section 6 of these terms and conditions, your insurance coverage will be void. In cases of gross negligence, we reserve the right to reduce the benefits provided in proportion to the extent of your fault. These actions will only apply if we have notified you of the legal consequences in writing.

However, if you can demonstrate that the breach was not due to gross negligence, your insurance coverage will remain in effect.

Additionally, your coverage will remain valid if you can prove that the breach did not directly cause the occurrence or determination of the insured event, nor affect the determination or scope of the benefit. This will not apply if the breach was fraudulent.

These provisions apply regardless of whether we choose to terminate the contract due to a breach of any pre-contractual duty of disclosure.

8 WHEN ARE THE BENEFITS DUE?

8.1 Declaration of the Obligation to Pay Benefits

We are required to notify you in writing within one month (or within three months for disability claims) whether and to what extent your claim is recognized. The deadline starts from the receipt of the following documents:

- Proof of the accident's occurrence and its consequences.
- For disability claims, additional proof of the completion of medical treatment, if necessary, for the assessment of the disability.

We will cover the medical fees you incur to substantiate your entitlement to benefits, up to 1 per mille of the insured amount for disability claims.
Unless otherwise agreed, we will not cover any additional costs.
Once we recognize your claim or agree with you on the reason and amount, payment will be made within two weeks.

8.2 Advance Payment

If the obligation to pay benefits is initially confirmed, we will, at your request, make appropriate advance payments. Before the treatment process is concluded, a disability benefit can only be claimed within one year of the accident, up to the amount of an agreed death benefit (see section 2.2).

8.3 Reassessment of the degree of disability

If your health condition changes after the initial disability assessment, either you or we can request a reassessment of the degree of disability annually. This reassessment right is available for up to three years after the accident.

If we request a reassessment, we will inform you of this when we notify you of our obligation to pay benefits.

If you wish to request a reassessment, you must notify us before the deadline expires.

If the final reassessment results in a higher disability benefit than already paid, interest of 5% per year will be applied to the additional amount.

However, if the final reassessment results in a lower disability benefit than already paid, the excess amount must be repaid.

The Insurance Term

9 WHEN DOES YOUR INSURANCE COVER BEGIN AND END?

9.1 Start of Insurance Cover

Your insurance coverage begins when you take possession of the rented vehicle. However, coverage will not begin before the pick-up date specified in the vehicle rental agreement.

9.2 Duration and End of Insurance Cover

The insurance coverage is valid for the duration specified in the vehicle rental contract, but no longer than the term of the rental agreement. Coverage will automatically end when the rented vehicle is returned.

The insurance premium

10 WHAT DO YOU NEED TO BEAR IN MIND WHEN PAYING PREMIUMS?

10.1 Payment of Premiums

The premium for Travel Accident Coverage is charged by Sixt Insurance Intermediary GmbH along with the vehicle rental fee.

10.2 Insurance Tax

The invoiced premium includes insurance tax, which you are required to pay at the rate specified by law.

Further Provisions

11 WHAT ARE THE LEGAL RELATIONSHIPS BETWEEN THE PARTIES TO THE CONTRACT?

11.1 Type of Contract

The Travel Accident Coverage provided is managed as a group insurance contract.

11.2 Parties Involved in the Contract

Sixt Insurance Intermediary GmbH is the policyholder for the group insurance contract. The rental agreement for the vehicle is made with a company from the Sixt Group.

TRIAS Versicherung AG is the risk carrier and insurer for the group contract.

Insured persons include:

- Any person who drives the rental vehicle with the permission of the lessor or lessee, and holds a valid driver's license that qualifies them to drive the rented vehicle.
- Any person riding in the rental vehicle with the knowledge and consent of the lessor or lessee, whether for payment or free of charge.

11.3 Rights Under the Contract

The insured person has the right to exercise the benefits of the contract directly with the insurer. Section 44 (2) of the German Insurance Contract Act (VVG) does not apply.

Notwithstanding Section 35 VVG, the insurer may not offset any amounts against the insured persons, as long as the insured persons can prove that they have fulfilled their payment obligations to the policyholder.

These provisions also apply to the legal successors and other claimants.

Insurance claims may not be transferred or pledged before maturity without our consent.

12 WHAT MUST BE OBSERVED WHEN NOTIFYING THE INSURER?

Sixt Insurance Intermediary GmbH is entitled to receive notifications, declarations of intent and payments from the insured persons and is obliged to forward these to the insurer without delay. Receipt by Sixt Insurance Intermediary GmbH is legally equivalent to receipt by the insurer.

Claims must be submitted exclusively via the web portal: https://www.trias-schadensmeldung.de/sixt-unfallversicherung/.
If you have any questions, please contact TRIAS customer service: **+49 (0) 89 55 167 1149** (the usual telephone charges of your telecommunications provider apply).

13 WHICH LAW APPLIES?

This contract is governed by German law.

14 WHICH COURT HAS JURISDICTION?

For legal actions arising from the insurance contract against the insurer, the court with jurisdiction is determined by the insurer's registered office. Additionally, the court located in the district where the insured person has their domicile or, in the absence of a domicile, their habitual residence at the time the action is filed will also have jurisdiction.

Instructions on the Right of Withdrawal for the Travel Accident Insurance Contract Between Sixt Insurance Intermediary GmbH and TRIAS Versicherung AG

Right of withdrawal

You have the right to withdraw your declaration of accession to the group contract (booking of personal accident cover and pick up of the rented vehicle) within **14 days** without providing any reasons. The withdrawal period begins after you receive the following documents:

The withdrawal period begins after you have received

- **the contractual provisions**,
  including the General Insurance Terms and Conditions applicable to the contract, which also include tariff provisions
- **these instructions,**
- the **Insurance Product Information Document,**
- **additional required information that starts the period (see below).**

The withdrawal period starts upon receipt of these documents in text form (e.g., letter, fax, or email). Sending the declaration of withdrawal on time is sufficient to meet the deadline. The declaration should be sent to:

Sixt Insurance Intermediary GmbH
Zugspitzstraße 1, D-82049 Pullach, Germany
Email: insurance.intermediary@sixt.com

Consequences of withdrawal

If you successfully withdraw, the insurance cover will end, and we must reimburse you for the part of the premiums attributed to the period after we receive the withdrawal declaration (if you agreed to begin coverage before the withdrawal period ends). In this case, we will retain the premium for the period up until we receive the withdrawal, calculated as the daily premium (1/30 of the monthly premium or 1/365 of the annual premium) for each day the coverage was in effect.

We must refund any amounts owed to you immediately, but no later than 30 days after receiving your declaration of withdrawal.

If the insurance cover does not begin before the end of the withdrawal period, withdrawing the contract will require the return of any received benefits and any interest accrued from the coverage.

Special Information

The right of withdrawal does not apply to vehicle rental contracts with a term of less than one month.

Your right of withdrawal will expire if the contract has been fully executed by both parties at your express request before you have exercised your right of withdrawal.

Further Information to Start the Withdrawal Period

We must provide the following information to initiate the withdrawal period:

1. The identity of the insurer and any branch office through which the contract is to be concluded; commercial register details and registration number.
2. The identity of any representative of the insurer in the Member State of the European Union where you reside, if such a representative exists, or the identity of any other commercial party, distinct from the insurer, with whom you have business dealings, including a specification of the capacity in which such party is acting towards you.
3. The insurer's summonable address and any other address relevant to the business relationship between the insurer and you; in the case of legal entities, associations or groups of persons, this also includes the name of an authorized representative; if the notification is made by transmitting the contractual provisions, including the general terms and conditions of insurance, the information must be highlighted and clearly presented;
4. the main business activity of the insurer;
5. The essential features of the insurance benefit, particularly information on the type, scope, and due date of the insurer's benefit.
6. The total price of the insurance, including all taxes and other price components. If the insurance includes multiple contracts, the premiums must be shown individually. If an exact price cannot be stated, information on the calculation basis should be provided to enable you to verify the price.
7. Any additional costs incurred, stating the total amount to be paid and any other taxes, fees, or costs not paid through or invoiced by the insurer.
8. Details regarding payment and fulfillment, including the method of premium payment.

9. Information on how the contract is concluded, including the commencement of the insurance, insurance cover, and the duration of the period during which you are bound by the application.
10. Information on the term of the contract;
11. Information on the termination of the contract, including the contractual terms of termination. Where the communication is made by transmitting the terms of the contract, including the General Terms and Conditions of Insurance, the information must be highlighted and clearly presented.;
12. The Member States of the European Union whose law the insurer uses as a basis for entering into relations with you before concluding the insurance contract.
13. the law applicable to the contract;
14. The languages in which the contractual terms and conditions and the preliminary information are communicated and the languages in which the insurer undertakes to communicate with you during the term of this contract.
15. Possible access to an out-of-court complaint and redress procedure, and if applicable, the conditions for such access. It must be expressly stated that this does not affect the possibility for your right to take legal action.

The name and address of the competent supervisory authority and the possibility of lodging a complaint with this authority.